

Minnesota Digital Due Process Act

Section 1. Short Title

This Act shall be known and may be cited as the "Minnesota Digital Due Process Act."

Section 2. Legislative Findings and Purpose

The Legislature finds that:

- (a) Government agencies increasingly utilize automated systems, predictive analytics, artificial intelligence, machine learning systems, and algorithmic decision-support tools.
 - (b) Such technologies may improve efficiency, reduce administrative burdens, identify fraud, allocate resources, and assist public officials in carrying out lawful governmental functions.
 - (c) Constitutional protections, including due process and equal protection, remain applicable regardless of technological medium.
 - (d) Public confidence in governmental institutions depends upon transparency, accountability, fairness, and meaningful human oversight.
 - (e) Individuals should not be subjected to material adverse governmental action solely on the basis of automated predictions, algorithmic determinations, or risk scores.
 - (f) The purpose of this Act is to preserve constitutional safeguards while permitting continued governmental innovation and lawful use of technology.
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Section 3. Definitions

For purposes of this Act:

Subdivision 1. Automated Decision System

"Automated Decision System" means a computational process, including artificial intelligence, machine learning, statistical modeling, algorithmic analysis, or similar technology, that materially assists, recommends, predicts, classifies, ranks, scores, or informs governmental decision-making.

The term does not include:

- (a) basic calculations;
 - (b) database searches;
 - (c) spell-checking, formatting, or clerical software;
 - (d) cybersecurity systems whose outputs are not used to make determinations regarding specific individuals.
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Subdivision 2. Material Adverse Governmental Action

"Material Adverse Governmental Action" means a governmental determination that may significantly affect an individual's rights, privileges, benefits, opportunities, legal status, property interests, or liberty interests.

Examples include but are not limited to:

- (a) denial, suspension, or termination of public benefits;
 - (b) licensing determinations;
 - (c) regulatory enforcement actions;
 - (d) civil penalties;
 - (e) government employment determinations;
 - (f) eligibility determinations;
 - (g) placement on governmental monitoring, risk, or investigative lists that carry legal consequences.
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Subdivision 3. Human Review

"Human Review" means meaningful consideration by an authorized public official who:

- (a) reviews the relevant facts;
 - (b) possesses authority to disagree with, modify, or reject the automated output;
 - (c) exercises independent judgment;
 - (d) is not required to automatically adopt the system's recommendation.
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Subdivision 4. Independent Supporting Evidence

"Independent Supporting Evidence" means evidence separate from the automated determination itself and reasonably sufficient to support the governmental action under applicable law.

Subdivision 5. Government Agency

"Government Agency" means any department, agency, board, commission, political subdivision, public authority, or instrumentality of the State of Minnesota.

Section 4. Prohibition on Sole Reliance

A government agency shall not impose a Material Adverse Governmental Action solely on the basis of:

- (a) an automated decision;
- (b) a predictive risk score;
- (c) an algorithmic classification;
- (d) an artificial intelligence output;
- (e) an automated recommendation.

Automated systems may assist decision-making but shall not serve as the sole basis for a Material Adverse Governmental Action.

Section 5. Human Accountability Requirement

Prior to any Material Adverse Governmental Action materially influenced by an Automated Decision System:

- (a) Human Review shall occur;
- (b) the reviewing official shall exercise independent judgment;
- (c) the reviewing official shall retain final decision-making authority.

No governmental agency may delegate final legal responsibility for a Material Adverse Governmental Action to an Automated Decision System.

Section 6. Notice Requirement

Where an Automated Decision System materially contributed to a Material Adverse Governmental Action, the affected individual shall receive notice that:

- (a) an Automated Decision System was utilized;
- (b) the system materially contributed to the determination;
- (c) the determination was subject to Human Review.

Notice shall be provided within a reasonable time consistent with existing administrative procedures.

Section 7. Opportunity for Review

An individual subject to a Material Adverse Governmental Action materially influenced by an Automated Decision System shall have access to any review, appeal, hearing, or reconsideration procedures otherwise available under applicable law.

Nothing in this Act shall be construed to create new causes of action beyond those expressly provided herein.

Section 8. Recordkeeping and Accountability

Government agencies utilizing Automated Decision Systems in consequential decision-making shall maintain records sufficient to:

- (a) identify the system used;
- (b) identify the purpose for which the system was used;
- (c) document Human Review procedures;
- (d) permit lawful auditing and oversight.

Agencies shall not be required to disclose information protected by law, including trade secrets, law enforcement-sensitive information, classified information, or information otherwise exempt from public disclosure.

Section 9. Law Enforcement Safeguards

Nothing in this Act shall prohibit law enforcement agencies from:

- (a) utilizing predictive tools for investigative leads;
- (b) employing analytical systems for intelligence purposes;
- (c) using technology to allocate resources or prioritize investigations.

However, no person shall be arrested, charged, sanctioned, designated as a suspect, or subjected to legal consequences solely on the basis of an automated prediction absent independent lawful grounds.

Section 10. Construction

This Act shall be construed narrowly to preserve constitutional protections while minimizing unnecessary burdens upon governmental operations.

Nothing in this Act shall:

- (a) prohibit lawful governmental use of artificial intelligence;
 - (b) require disclosure of protected investigative methods;
 - (c) create a property interest in data;
 - (d) prohibit statistical analysis;
 - (e) prohibit fraud detection systems;
 - (f) prohibit cybersecurity systems;
 - (g) alter existing evidentiary standards.
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Section 11. Enforcement

A person aggrieved by a knowing and material violation of this Act may seek:

- (a) declaratory relief;
- (b) injunctive relief;

(c) review through existing administrative procedures where applicable.

Courts shall give substantial weight to good-faith compliance efforts undertaken by governmental agencies.

Technical or harmless errors that do not materially affect an individual's rights shall not constitute a violation of this Act.

Section 12. Severability

If any provision of this Act or its application is held invalid, the invalidity shall not affect other provisions or applications that can be given effect without the invalid provision or application.

To this end, the provisions of this Act are severable.

Section 13. Effective Date

This Act shall take effect on July 1 following enactment.

Government agencies shall be provided a twelve-month implementation period to establish compliance procedures.

Existing systems may remain operational during the implementation period.